



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 9256
(FOURTH REVISION)

MAR 14 1989

1. U.S. Department of Defense (DOD), Washington, D.C., and its contractors are hereby granted an exemption from certain provisions of the Department's Hazardous Materials Regulations to ship various kinds of explosives in commerce with a DOD Interim Hazard Classification. These shipments are subject to the limitations and special requirements specified herein and this exemption provides no relief from any regulation other than as specifically stated herein.
2. BASIS. This exemption is based on DOD's application dated September 4, 1987, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon and supplemental letter dated October 17, 1988.
3. HAZARDOUS MATERIALS (Descriptor and class). Military explosives, explosive devices and ammunition - classed as explosive A, B or C on an interim basis.
4. PROPER SHIPPING NAME (49 CFR 172.101). The proper shipping name or generic description for each explosive, as appropriate.
5. REGULATION AFFECTED. 49 CFR Part 107, Appendix B, Subpart B(1) and 173.86; 175.30; 46 CFR 146.20-13.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo aircraft only (see paragraph 8e).
7. SAFETY CONTROL MEASURES.
 - a. Authorized Explosives. An explosive authorized to be transported under the provisions of this exemption is a new explosive covered by a written DOD Interim Hazard Classification that has been issued not more than one year before the date of transportation of the explosive.
 - b. Classification of Explosives. Each DOD Interim Hazard Classification of an explosive must be approved (by signature) by one of the following persons:

Chief, Explosive Safety Branch (AFISCI-SEV)
Norton Air Force Base, CA 92409

Director of Safety
Combat Systems Directorate (06H)
Naval Sea Systems Command
Washington, DC 20362

Withdrawn

MAR / 4 1989

Chief
Safety Engineering Division
DARCOM Field Safety Activity
Charlestown, IN 47111

The names of the persons holding the above listed positions shall be provided to the Office of Hazardous Materials Transportation (OHMT) on a current basis.

c. Delegation of Approval Authority. The chiefs of the U.S. Army and U.S. Air Force offices identified in 49 CFR 173.86(b)(2) may, with the Department of Defense Explosives Safety Board's (DDESB) concurrence, authorize, respectively, the following additional persons to grant (by signature) interim hazard classification approvals, subject to all the conditions and procedures of this exemption:

U.S. Army:

Chief, Safety Office
U.S. Army Missile Command
Redstone Arsenal, AL 25898-5130

Chief, Safety Office
U.S. Army Armament Research and Development Center
Dover, NJ 07801-5001

Chief, Safety Office
U.S. Army Chemical Research and Development Center
Aberdeen Proving Ground, MD 21010-5423

Chief, Safety Officer
HQ Laboratory Command
2800 Powder Mill Road
Adelphi, MD 20783-1145

U.S. Air Force:

Chief, Weapons Safety
HQ, Air Force Systems Command
Andrews Air Force Base, MD 20334-5000

Director of Systems Safety
HQ, Armament Division (AFSC)
Eglin Air Force Base, FL 32542-5000

Safety Director
Naval Ordnance Station (Code 04)
U.S. Navy
Indian Head, MD 20640

The names of the persons holding the above listed positions to whom approval authority is delegated shall be provided to the OHMT and to DDESB-KT on a current basis.

8. SPECIAL PROVISIONS.

a. This exemption authorizes transportation of new explosives covered by DOD Interim Hazard Classifications and transportation of such explosives when offered by DOD contractors under commercial bills of lading.

b. A copy of the DOD Interim Hazard Classifications must be carried aboard each motor vehicle, cargo vessel and aircraft used to transport explosives covered by this exemption.

c. Packages are not required to be marked with the exemption number.

d. The requirements of 49 CFR 173.86 do not apply to explosives transported under this exemption.

e. Shipments by cargo aircraft must be transported by an air carrier authorized by an exemption to carry explosives. The air carrier, exemption held by the carrier, and type of explosive to be carried, must be identified to and approved in writing by this Office prior to the first shipment.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. October 31, 1989.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

MAR 14 1989

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA, FAA, USCG